

Smt. Rekha vs Sanjeet Kumar on 18 May, 2026

Author: Yogendra Kumar Srivastava

Bench: Yogendra Kumar Srivastava

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2026:AHC:114980

HIGH COURT OF JUDICATURE AT ALLAHABAD

TRANSFER APPLICATION (CIVIL) No. - 614 of 2022

Smt. Rekha

.....Applicant(s)

Versus

Sanjeet Kumar

.....Opposite Party(s)

Counsel for Applicant(s)

:

Satya Narayan Yadav

Counsel for Opposite Party(s)

:

Kamlesh Singh

Court No. - 35

HON'BLE DR. YOGENDRA KUMAR SRIVASTAVA, J.

Heard Sri Praveen Kumar Rajput, learned Advocate holding brief of Sri Satya Narayan Yadav, counsel for the applicant and Sri Kamlesh Singh, learned counsel for the opposite party.

Present application has been preferred by the Applicant-wife under Section 24 of the Code of Civil Procedure, 1908, seeking transfer of Case No.1174 of 2021 (Sanjeet Kumar Vs. Rekha) instituted under Section 9 of the Hindu Marriage Act, 1955, from the Court of the Principal Judge, Family Court, Gautam Budh Nagar to the Court of the Principal Judge, Family Court, Firozabad.

The order-sheet of the case indicates that on 19.9.2022, when the case was taken up, this Court, upon considering the submissions made on behalf of the applicant that there exists a case pending inter partes at Firozabad, as detailed in paragraph no.8 of the affidavit filed in support of the application, the applicant has no source of income of her own, she is dependent upon her father, the applicant is not in a position to travel from Firozabad to Gautam Budh Nagar, on each date fixed in the proceedings, the convenience of the wife about the venue in a matrimonial cause has to be accorded priority, directed issuance of notice and stayed further proceedings of the divorce suit.

Counsel appearing for the opposite party submits that although a counter affidavit has been filed, but without admitting the allegations made by the applicant, has very fairly submitted that he has instructions to state that the opposite party does not object to the transfer of the case to Firozabad, as sought by the applicant.

This Court, in its recent decisions in Smt. Akansha Saxena v. Shikhar Saxena, 2026 (3) ADJ 104, and Smt. Arju @ Vimal v. Umakant Parasar, 2026 (3) ADJ 66 has observed that in matrimonial cases, the convenience of the wife must be looked into; the cardinal principle for exercise of power under Section 24 CPC being that the ends of justice should be subserved.

In view of the aforesaid discussions, and particularly in view of the hardship that has been pleaded by the applicant and the categorical "No Objection" expressed on behalf of the Opposite Party, this Court is of the considered opinion that the present case is a fit one for exercise of power under Section 24 CPC. The transfer sought, being by consent of the parties and in furtherance of justice, deserves to be allowed.

Accordingly, Civil Misc. Transfer Application is allowed with the following directions:

- (i) The proceedings of Case No.1174 of 2021 (Sanjeet Kumar Vs. Rekha) instituted under Section 9 of the Hindu Marriage Act, 1955, are hereby withdrawn from the Court of the Principal Judge, Family Court, Gautam Budh Nagar and transferred to

the Court of the Principal Judge, Family Court, Firozabad.

(ii) The Principal Judge, Family Court, Gautam Budh Nagar is directed to transmit the entire case record to the Transferee Court at District Firozabad within fifteen days from the date of receipt of a certified copy of this order.

(iii) The Transferee Court shall proceed with the matter from the stage at which it was transferred and shall endeavor to conclude the proceedings expeditiously.

(Dr. Yogendra Kumar Srivastava,J.) May 18, 2026 Arun K. Singh